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IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

IN THE MATTER OF:

EVAKAY BALDES, AND
ALEXIS CLARK,
MINOR CHILDREN.

CASE NO. JV24-00104
JV24-00105
DEPT. NO. JM1

COURT REPORT FOR THE 6-MONTH REVIEW HEARING

HEARING SCHEDULED FOR: July 10, 2024, at 1:30 p.m.
*Date subject to change based on Court Operations.

PLACE OF HEARING: Second Judicial District Court of the State of Nevada

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1 CONCERNING: EVAKAY BALDES
2 AGE: Fourteen years, eight months
3 DATE OF BIRTH: October 19, 2009
4 DATE OF REMOVAL: January 23, 2024
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6 CONCERNING: ALEXIS CLARK
7 AGE: Ten years, four months
8 DATE OF BIRTH: February 24, 2014
9 DATE OF REMOVAL: January 23, 2024
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11 FATHER TO EVAKAY: JUSTIN BALDES
12 Date of Birth: October 3, 1990
13 Address: 739 S 14th St.
Worland, WY 82401
14 FATHER TO ALEXIS: DONOVAN CLARK
15 Date of Birth: March 20, 1985
16 Address: 6550 Pyramid Way #37
Sparks, NV 89436
17 MOTHER: MEGAN MCCAFFERTY
18 Date of Birth: August 25, 1991
19 Address: 6550 Pyramid Way #37
Sparks, NV 89436
20 **I. INDIAN CHILD WELFARE ACT (ICWA)**
21 This case DOES NOT involve the protection of an Indian child. This determination was
22 made by the statement of MEGAN MCCAFFERTY, MOTHER and DONOVAN CLARK,
23 FATHER TO ALEXIS on JANUARY 23, 2024; and JUSTIN BALDES, FATHER TO
EVAKAY, on JANUARY 29, 2024.
24 **II. PLACEMENT OF THE CHILD(REN)**
25 Evakay and Alexis are currently placed with Della Baker, relative care.
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1 **III. PLACEMENT OF THE CHILDREN IN RELATION TO SIBLINGS**

2 Not Applicable as the siblings are in placement together.

3 **IV. IN-HOME SAFETY PLANNING**

4 These conditions are needed in order for the agency to put safety services in the home so the
5 children can be placed on an In-Home Safety Plan.

6 Please see attached "Conditions For Return".

7 **V. STATUS OF VISITATION**

8 Donovan Clark ("Mr. Clark") and Megan McCafferty ("Ms. McCafferty") visit with Alexis
9 and Evakay on Tuesday's and Thursdays from 3:00 until 4:00 p.m. at the Family
10 Engagement Center ("FEC"). Evakay and Alexis began family therapy, every other week,
11 with Mr. Clark and Ms. McCafferty in May 2024, with Jennifer Hubbert, who is also Mr.
12 Clark and Ms. McCafferty's couple's therapist.

13 The parents have attended every visit. There was one visit missed by the girls, when the
14 current caregiver, paternal grandmother, Della Baker ("Ms. Baker") refused to transport due
15 to ongoing conflict with Mr. Clark and Ms. McCafferty. The children's foster parent prior to
16 Ms. Baker, was late once and, on another occasion, she had canceled a visit with an Engager
17 who was not assigned to this family and the parents weren't made aware of the cancellation.

18 The FEC advocated for the family to have off site visits, in which the parents and children
19 checked in at the FEC and then spent their time outside of the center. This was approved
20 March 19, 2024.

21 In March 2024, Washoe County Human Services Agency ("WCHSA") was aware of
22 inappropriate texts exchanges between Ms. McCafferty and Evakay, in which Ms.
23 McCafferty made multiple statements asking Evakay to emotionally support and comfort Mr.
24 Clark along with detailed information about Mr. Clark's progress in treatment. Ms.
25 McCafferty was advised to make her phone calls with the girls focused on the girls and their
26 needs.

27 Evakay and Alexis moved to Ms. Baker's home on April 16, 2024. Initially, it was agreed
28 that Ms. McCafferty and Mr. Clark could call the children at 8:00 a.m. and 8:00 p.m. daily.
29 Almost immediately, Ms. McCafferty began reporting that Ms. Baker was either preventing
30 and/or listening into calls with the girls. When the case worker addressed these concerns
31 with the girls and Ms. Baker, both reported the parents had stopped calling. Ms. Baker

32 discussed that she could not tell when the girls were talking to Ms. McCafferty because they
33 would speak so quietly. Around this time, the parents and Ms. Baker began complaining
34 about Eva's phone being sent back to factory settings. Ms. Baker also reported the parents
35 were asking the girls to delete calls from their call logs.

36 On May 3, 2024, Ms. Baker notified WCHSA that Alexis returned home from a visit with
37 her parents very distraught, believing that she'd potentially gravely harmed Ms. McCafferty
38 when she'd given Ms. McCafferty a blueberry flavored treat. In speaking with Alexis about

the incident, she had no prior knowledge of Ms. McCafferty having any food allergies to blueberries or blueberry flavorings.

On May 23, 2024, Ms. Baker and Evakay called the case worker, Eva was sobbing as she retold worker how Mr. Clark had received an anonymous message detailing that Ms. McCafferty had helped Evakay hide having a boyfriend from Mr. Clark for many months. In attempts to be honest with Mr. Clark, Evakay called to confided in Mr. Clark that she had had a boyfriend for many months, Ms. McCafferty had been aware of her boyfriend and had facilitated them having contact outside of school. Ms. McCafferty, was also listening to this call, responded by telling Mr. Clark to end the call and calling Evakay a "lair".

Due to extensive conflict, Ms. Baker returned the girls' cell phones to the parents. Ms. Baker offered for calls between the parents to occur on the home computer, which is placed in the kitchen area or at 8:00 a.m. and 8:00 p.m. Mr. Clark and Ms. McCafferty were uncomfortable having calls with the girls where Ms. Baker can hear their conversations and chose not to call. WCHSA was able to make arrangements for Ms. Hubbert to facilitate calls between the parents and girls at 8:00 p.m. two days a week; however, Mr. Clark and Ms. McCafferty refused to have any contact with the girls in association with Ms. Baker. WCHSA has made two requests to the girls individual therapists requesting the girls speak with their parents at some point during the session.

On or about May 29, 2024, Ms. Baker observed direct messages between Evakay and her peers, in which Evakay made suicidal, homicidal, and sexual messages. On this date, at the FEC, Evakay was observed to be crying during conversations with Mr. Clark and Ms. McCafferty advised FEC staff Mr. Clark was talking to Eva about the DM's. Due to the lack of knowledge of parent/child interactions, visits were returned to onsite at the FEC.

VI. PARENTS' PROGRESS

MEGAN MCCAFFERTY

Current Impending Dangers

- Ms. McCafferty participated in a psychosocial evaluation March 14, 2024, that needed to be corrected due to multiple inaccuracies including that Mr. Clark was not the father of Alexis. WCHSA spoke with the evaluator/therapist, Jennifer Baumgartel (Ms. Baumgartel), LMSW, CSW-Intern, who agreed to correct the evaluation; however, did not believe she had misheard Ms. McCafferty's initial self-reports.
- Ms. McCafferty then struggled to engage with therapeutic services for approximately four to five weeks. She would inform WCHSA that she had completed the paperwork, including Releases of Information ("ROI") to Talk space, required for services to be conducted by Ms. Baumgartel. WCHSA would then be notified that Ms. McCafferty had not signed the ROI's as needed. This caused Ms. McCafferty to need to be transitioned to a different provider, Jesse DeHaven, ("Ms. DeHaven"), LMSW, LADC, CW-i. Ms. McCafferty eventually signed an ROI to Better help.
- When Ms. McCafferty was transferred to Ms. DeHaven, Ms. McCafferty emailed the assigned the case worker that a new psychosocial evaluation was

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1 being requested under the new provider; however, WCHSA received notice that
2 Ms. McCafferty was requesting the new evaluation.
3 • During a Child and Family Team Meeting on June 3, 2024, Ms. DeHaven made
4 multiple statements indicating that she was not aligned with WCHSA and was
5 minimizing and/or doubting the reasons the children were placed into foster
6 care.
7 • WCHSA is aware that Ms. McCafferty has made significant progress with the
8 condition of the home; however, at the last home visit, on April 9, 2024, the
9 parents did not permit the caseworker into their bedroom. The case worker
10 attempted to make two more unannounced home visits; each time the parents
11 were not home.
12 • WCHSA has concerns that Ms. McCafferty does not provide accurate medical
13 information related to the children. On May 7, 2024, WCHSA spoke with the
14 school nurse at Reed High School, who discussed that she'd been reviewing
15 Evakay's medical history, indicating Evakay having had an intestinal stent,
16 requiring her to have frequent bathroom breaks. When asked to provide
17 information relating to this, Ms. McCafferty initially claimed that Evakay had
18 obtained this procedure while she was still in a relationship with Justin Baldes
19 ("Mr. Baldes") and the domestic violence she endured during this relationship
20 caused her to have spotty memory of the procedure. Mr. Baldes had no
21 knowledge of the procedure. Ms. McCafferty is unable to provide any dates,
22 names of physicians or medical offices, only that it had occurred in Wyoming.
23 On a later date, Ms. McCafferty recalled being with Mr. Clark, who was also
24 on the call and reported being present for the abdominal stent procedure. Ms.
25 McCafferty reports this abdominal stent passed when Evakay was eight or nine
26 years old. She reports this was a minimally invasive surgery, in which Evakay
went to the zoo after the procedure. WCHSA consulted with the medical unit
to better identify an "abdominal stent" and ultimately Evakay had an x-ray on
her abdomen which was inconclusive. When Evakay was asked if she'd ever
had surgery, she discussed that she may have been told by her mother that she'd
had none or up to three surgeries in her life and she wasn't sure.
• At the time the children were placed into WCHSA custody, the girls were both
complaining of physical ailments due to the parents fighting. On February 1,
2024, Evakay and Alexis were evaluated by WCHSA clinician, Kim Taitano
and determined to not present with any emotional or behavioral concerns.
Evakay has said many times and currently, that Ms. McCafferty's emotional
reliance on her is overwhelming and too much for her to handle. Evakay
demonstrated with the first foster caregivers being overly preoccupied with a
concern for her caregivers' wellbeing.
• On or about May 29, 2024, Ms. Baker located direct messages ("DM's") on her
home computer between Evakay and her current boyfriend, past boyfriend, and
a female friend. Evakay made homicidal, suicidal, and sexual comments.
WCHSA was notified by the FEC that Evakay was observed crying at a visit.
• Ms. McCafferty had an elevated response to learn that Evakay was placed on
birth control. Her reaction and how it has impacted Evakay's emotional
wellbeing is unknown.
• Meagan Mulligan ("Ms. Mulligan"), school counselor at Sepulveda elementary
school, who has known the girls for many years, has been checking in with
Alexis and Evakay two to three days times a week until the end of the 2023-
2024 school year. She reported June 4, 2024, concerns the girls continued to be

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1 impacted by Ms. McCafferty's mental health, inappropriate self-disclosures,
2 promises of future reunification and advising the children that WCHSA is
3 "lying" to them. She reports that Evakay is very sad. She expressed concern
4 that Evakay and Alexis are being exposed to Ms. McCafferty's mental health
5 issues, causing the girls to have similar thought distortions.

- 6 • On May 23, 2024, Ms. Baker and Evakay called the case worker, Eva was
7 sobbing as she retold worker how Mr. Clark had received an anonymous
8 message detailing that Ms. McCafferty had helped Evakay hide having a
9 boyfriend from Mr. Clark for many months. In attempts to be honest with Mr.
10 Clark, Evakay called to confided in Mr. Clark that she had had a boyfriend for
11 many months, Ms. McCafferty had been aware of her boyfriend and had
12 facilitated them having contact outside of school. Ms. McCafferty, was also
13 listening to this call, responded by telling Mr. Clark to end the call and calling
14 Evakay a "liar". Ms. McCafferty continues to deny knowledge about
15 Evakay's boyfriend and Evakay continues to be upset that her mother is a
16 "liar".
- 17 • Ms. McCafferty has minimized the conflict between her and Mr. Clark. She
18 denies having any current conflict with Mr. Clark. She writes that
- 19 • WCHSA has not yet been able to determine accurately Ms. McCafferty's
20 mental health status. Nor has it been able to accurately be determined Evakay's
21 and Alexis's Mental health needs based off of the CASSI assessment on
22 February 1, 2024, the children did not begin services until June 2024. Also, the
23 children's first placement providers were not supervising correspondence, or
24 calls. Due to the parents having visits off site from the FEC, WCHSA has no
25 input on how the children and family behave when together. Therapeutic
26 services for the girls has only begun.

15 Progress on Case Plan Goals

16 **Case Plan Goal 1:** Ms. McCafferty recognizes threats to her children's safety. She discusses
17 the need for such a plan and is readily able/willing to put that plan into action. She articulates
18 life circumstances accurately and timely, within people and environments.

- 19 • **Behavioral change to ensure child safety:** Ms. McCafferty is at general
20 progress with this goal. Ms. McCafferty participates in couples counseling
21 with Mr. Clark and family counseling with Mr. Clark and the girls with
22 Jennifer Hubbert ("Ms. Hubbert"). Ms. McCafferty is participating in
23 individual counseling with Jesse DeHaven ("Ms. DeHaven"). Ms.
24 McCafferty has participated in Warrior to Soulmate, a couple's bonding
25 weekend through the Veterans Administration ("VA"). On June 27, 2024,
26 Ms. McCafferty and Mr. Clark provided a thorough letter detailing what their
arguments had been about, how they were addressing the issues, a relapse
prevention plan addressing both Mr. Clark's substance use and fighting. This
letter also detailed their continued commitment for mental health treatment.
- **Clinical information:** On July 2, 2024, a clinical staffing will be held with
Ms. Hubbert, Ms. DeHaven, Ms. Mulligen, Evakay's therapist, Rebecca
Perkins (Ms. Perkin's), and Geneva Steffinger ("Ms. Steffinger") to
collectively discuss the needs of the family members.

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- **Additional steps needed for parent:** Ms. McCafferty needs to continue to participate in services, continue to have collaborative communication with the agency. Ms. McCafferty will need to follow any recommendations that are identified by the clinical staffing. Ms. McCafferty is scheduled for a neuropsychological evaluation in September 2024.
- **Additional steps needed for agency:** WCHSA will gain additional knowledge from the clinical staffing on July 2, 2024, in efforts to implement an in-home safety plan. On July 3, 2024, WCHSA has an internal staffing to discuss an in-home safety plan with WCHSA safety service providers.

Case Plan Goal 2: Ms. McCafferty demonstrates appropriate parenting practices, to include age appropriate boundaries and expectations. She acts in responsible and protective manner. She is able to express and behave with appropriate parent child boundaries.

- **Behavioral change to ensure child safety:** Ms. McCafferty is at minimal progress with respect to this goal, largely because the specific information and content she shares with her children is unclear. On May 1, 2024, Ms. McCafferty completed parenting classes. Ms. McCafferty has advocated numerous times for her children.
- **Clinical information:** On July 2, 2024, a clinical staffing will be held with Ms. Hubbert, Ms. DeHaven, Ms. Mulligen, Evakay's therapist, Rebecca Perkins ("Ms. Perkins"), and Geneva Steffinger ("Ms. Steffinger") to collectively discuss the needs of the family members.
- **Additional steps needed for parent:** Ms. McCafferty needs to continue to participate in services, continue to have collaborative communication with the agency. Ms. McCafferty will need to follow any recommendations that are identified from the clinical staffing. Ms. McCafferty will cooperate with safety service providers.
- **Additional steps needed for agency:** WCHSA will gain additional knowledge from the clinical staffing on July 2, 2024, in efforts to implement an in-home safety plan. On July 3, 2024, WCHSA has an internal staffing to discuss an in-home safety plan with WCHSA safety service providers.

Case Plan Goal 3: Ms. McCafferty has appropriate housing that is clean and safe from any health or safety concerns.

- **Behavioral change to ensure child safety:** Ms. McCafferty is at general with this goal. She has met with Human Services Support Specialist (HSSS) for household maintenance and the home has been cleared of broken appliances.
- **Clinical information:** None

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- **Additional steps needed for parent:** Allow WCHSA to enter the home and inspect all areas of the home.
- **Additional steps needed for agency:** WCHSA to thoroughly inspect the home.

DONOVAN CLARK

MR. CLARK is the presumed father to ALEXIS based on MR. CLARK AND MS. MCCAFFERTY RESIDED TOGETHER FOR SIX MONTHS PRIOR TO AND THROUGHOUT THE PERIOD OF CONCEPTION. MR. CLARK IS LISTED AS FATHER ON THE BIRTH CERTIFICATE.

Current Impending Dangers

- Mr. Clark has denied or minimized the fighting in the home and the impact it had on the children.
- WCHSA does not have a clear understanding of how Mr. Clark's mental health impacts Evakay and Alexis' mental health.
- WCHSA has been unable to verify the condition of the home in entirety.

Progress on Case Plan Goals

Case Plan Goal 1: Mr. Clark controls his impulses related to his substance use and domestic violence. He understands the safety impact that his substance use and fighting in front of the children has. He discusses his triggers, the impact of his substance use in regards to his ability to fulfil caregiver responsibilities, and describes a relapse prevention plan. He has a plan of protection for his children against anger and aggression.

- **Behavioral change to ensure child safety:** Mr. Clark is at general progress with this goal. Mr. Clark completed a partial hospitalization program and Intensive Outpatient program and continues to participate in individual and group therapy for substance use. Mr. Clark has provided WCHSA with a copy of his relapse prevention plan. Mr. Clark and Ms. McCafferty participate in couples counseling with Ms. Hubbert twice a month and family counseling twice a month.
- **Clinical information:** Mr. Clark is in good standing with the VA and reports reflect he is active and engaged in treatment.
- **Additional steps needed for parent:** Mr. Clark to continue to engage in services. Follow any recommendations following the Clinical staffing on July 2, 2024.
- **Additional steps needed for agency:** WCHSA will be working in partnership with the therapists to meet the emotional needs of the children.

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Case Plan Goal 2: Mr. Clark has appropriate housing that is clean and safe from any health or safety concerns.

- **Behavioral change to ensure child safety:** Mr. Clark is at general with this goal. He has met with HSSS for household maintenance and the home has been cleared of broken appliances.
- **Clinical information:** None
- **Additional steps needed for parent:** Mr. Clark has agreed to allow WCHSA to inspect all areas of the home.
- **Additional steps needed for agency:** WCHSA to fully assess all areas of the home.

JUSTIN BALDES

MR. BALDES is the legal and presumed father to EVAKAY based on THERE IS AN ACTIVE CHILD SUPPORT ORDER IN WYOMING ESTABLISHING PATERNITY; MR. BALDES HOLDS HIMSELF OUT AS FATHER AND IS LISTED AS FATHER ON THE BIRTH CERTIFICATE.

Current Impending Dangers

- Mr. Baldes has not made any effort to build a relationship with Evakay. Mr. Baldes has not expressed a desire to reunify. He continues to be unaware of her needs or interests.

Progress on Case Plan Goals

Case Plan Goal 1: Mr. Davis demonstrates a desire to have Eva in his home. He is emotionally in line with her and aware of and able to meet her medical, dental, educational, and emotional needs.

- **Behavioral change to ensure child safety:** Mr. Baldes is at no progress for this goal. He has not expressed a desire to build a relationship with Evakay.
- **Clinical information:** None
- **Additional steps needed for parent:** Develop a relationship with Evakay and express a desire to reunify.
- **Additional steps needed for agency:** WCHSA will continue to communicate with Mr. Baldes in attempts to engage in the reunification process.

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VII. CHILD(REN)'S NEEDS AND SERVICES

EVAKAY BALDES

Medical Needs:

- Evakay was established with Renown Pediatrics on June 4, 2024. She has no medical diagnosis and is in good health.

Dental Needs:

- Evakay is established at My Kids Smile. She was seen on March 21, 2024, for a cleaning. She is scheduled for treatment on July 15, 2024, and a cleaning on September 24, 2024.

Mental health/behavioral needs:

- Evakay began individual therapy with Ms. Perkin on June 17, 2024. Evakay wanted to participate in therapy. She is not taking medications.
- Evakay participates in family therapy twice a month with Ms. Hubbert.

Education:

- Evakay completed the 8th grade at Sky Ranch middle school. She earned an A in fitness, B's in math, science and orchestra, and 2 D's in English and social studies. She is excited to attend Reed High School in August 2024.

IL Services/Needs if 14 years or older: An IL Specialist will be assigned to Evakay in July 2024.

ALEXIS CLARK

Medical Needs:

- Alexis was established with Renown Pediatrics on May 31, 2024. She suffers from seasonal allergies and takes allergy medicine once a day. Alexis had lab work on June 13, 2024.
- Alexis was seen by Pritchett Eyecare on June 27, 2024 and was prescribed glasses.

Dental Needs:

- Alexis is established with My Kids Smile, she was seen on April 8, 2024 for a cleaning. She will receive fillings on July 10th and 23rd, 2024. She is scheduled for a cleaning on September 24, 2024.

Mental health/behavioral needs:

- Alexis began participating in individual therapy with Ms. Steffinger on June 19, 2024.
- Alexis participates in family therapy twice a month with Ms. Hubbert.
- She is not prescribed mental health medications.

Education:

- Alexis completed the 4th grade at Sepulveda Elementary School. Overall, she earned A's, B's, and once C in math.

IL Services/Needs if 14 years or older: Not applicable.

VIII. PLACEMENT PLANNING/RELATIVE RESOURCES/DILIGENT EFFORTS TO LOCATE

Discussion has taken place with the care provider and they are not willing to be a long-term placement option.

Pursuant to Fostering Connections to Success and Increasing Adoptions Act of 2008, known adult relatives have been provided: Notice that the child(ren) have been removed from the custody of their caregivers; explanation of options available to them to participate in case planning and placement of the child(ren); requirements and supports available to relative foster homes and Kinship Care Program; and a request to provide the names of other relatives of the child(ren).

No additional family members have been identified.

IX. REASONABLE EFFORTS TOWARDS THE PERMANENCY PLAN

- Medicaid coverage
- Child and Family Team Meetings
- Collaboration with Mr. Clark's therapist and the VA.
- Collaboration and payment with ACCS for Ms. McCafferty's mental health needs
- Collaboration with Ms. Hubbert for couples and family counseling;
- Collaboration with Kid's First for Alexis and Evakay's mental health needs;
- Collaboration with WCHSA licensing;
- Collaboration with Ms. Mulligen;
- Collaboration with Washoe County School District transportation;
- Payment for Ms. Baker's medical bills;
- Review Certificate of completion of parenting classes;
- Written exchange with the parents regarding the content of information gained from parenting classes;
- Effects of Violence voucher for Ms. McCafferty;
- Review of Mr. Clark's paystubs;
- Review Evakay's text messages between Mr. Clark and Ms. McCafferty;
- Collaboration with the FEC;
- Case plan service agreement;
- Collaboration with WCHSA Clinical unit;
- Collaboration with WCHSA Medical unit;
- Fostering Connections letters;
- Kids Kottage placement staffing;
- Foster care payment prior to licensure for Ms. Baker;
- Home visits with Evakay and Alexis;
- Home visits to Mr. Clark and Ms. McCafferty's residence;
- Placement stability staffings;

- Transportation for Alexis and Evakay to FEC;
- Taxi voucher for Mr. Clark and Ms. McCafferty for parenting classes;
- Frequent case consultation with supervisors and the District Attorney;
- Partial payment for air conditioner repairs for Ms. Baker;
- Payment for dumpster rental;
- Reimbursement for medical expenses for Ms. Baker and her husband, Byron Maccietto;
- Reimbursement for Alexis and Evakay's clothing to Ms. Baker;
- Collaboration and voucher for Clover Counseling for therapeutic services for Evakay and Alexis;
- Voucher and collaboration with Dr. Highsmith for a neuropsychological evaluation for Ms. McCafferty;
- Purchase organizational supplies for the parents home;
- HSSS support to clean and organize the parents home;
- Purchase bunk bed and mattress' for Ms. Baker's residence;
- Payment to Junk Magicians for the parents home, twice;
- Reno Rodeo Foundation financial supports;
- Rent payment for Mr. Clark and Ms. McCafferty;
- Payment to Reno Bike Project for bike repairs;
- Collateral call with Sparks Police Department;

REQUESTED FINDINGS AND RECOMMENDATIONS/ORDERS

Findings

1. The Court has jurisdiction pursuant to NRS 432B.410 and NRS 125A.
2. An initial inquiry has been made about whether the Indian Child Welfare Act applies. Based upon information provided by the parents or obtained by the WCHSA, the Indian Child Welfare Act does not apply.
3. Notification of this hearing was properly served on the parties.
4. Placement of the children continues to be necessary because Conditions for Return have not been met.
5. The current physical placement of said children in family foster care is appropriate, least restrictive, and consistent with the best interest and special needs of the children.
6. The Permanency Plan, pursuant to NRS 432B.553, remains reunification.
7. WCHSA has made reasonable efforts to finalize the permanency plan pursuant to NRS 432B.393 as set forth in section "IX" of the Report.

Recommendations/Orders

1. Legal and physical custody and care with the authority to determine the appropriate placement of EVAKAY BALDES and ALEXIS CLARK remain with the WCHSA, subject to review by the court.

2. WCHSA may consent to any and all necessary and/or emergency medical treatment for the child(ren) while the child(ren) remain in its custody.

3. MEGAN MCCAFFERTY is ordered to comply with the Case Plan.

4. DONOVAN CLARK is ordered to comply with the Case Plan.

5. JUSTIN BALDES is ordered to comply with the Case Plan.

6. MEGAN MCCAFFERTY, DONOVAN CLARK and JUSTIN BALDES shall provide the WCHSA with identifying information, including name, address and phone numbers for any relatives with whom the children may be placed.

7. MEGAN MCCAFFERTY and DONOVAN CLARK shall refrain from harmful or offensive conduct to the children, the other parent, the custodian of the children or any person who has placement, to include discussing the details of this case and any disparaging statement or comments.

8. Visitation Plans attached hereto be ordered.

9. MEGAN MCCAFFERTY and DONOVAN CLARK shall pay child support as previously ordered.

10. A Permanency Hearing shall be set.

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1 11. All previous orders not in conflict with this order will remain in full force and
2 effect.

3 AFFIRMATION PURSUANT TO NRS 239B.030

4 The undersigned does hereby affirm that the preceding document does not contain the
5 personal information of any person.

6 Respectfully Submitted,

7 /s/ Jennie Ballou
8 Jennie Ballou
9 Human Services Case Worker
10 Human Services Agency
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ATTACHMENTS

1. Declaration of service
2. ICWA statements from each parent
3. Placement directory for each child
4. Photo of each child
5. Medical Passport for each child
6. Clinical documentation
7. CFRs document from Unity
8. Case Plan
9. Visitation Plan
10. School aged children's transcripts
11. Current grade report
12. School aged children's attendance record